



The Forty-Year Rule You Wrote

Student copy (project or hand out)

1 Chief Justice Roberts, forgive the liberty a private citizen takes in writing to you at all, weeks before an election, about a case you have already closed. On April 29 your Court decided *Louisiana v. Callais*, six votes to three, and Justice Alito wrote for a majority you joined. The map at issue had drawn a second majority-Black district. The Court called that an unconstitutional racial gerrymander.

2 I had meant, in writing to you, to do the decent thing and defer. A citizen who cannot read a docket the way you can is supposed to grant that the Justice has seen more, weighed more, sat longer with the record than any letter-writer ever could. That is the posture this letter was going to keep. I find I cannot keep it, and the reason is your own hand.

3 In 2013, striking down the Voting Rights Act's coverage formula in *Shelby County v. Holder*, you wrote that an enforcement law must speak to current conditions, that Congress could not rest on facts forty years old having no logical relationship to the present day. You also wrote, in that same opinion, a sentence I have not forgotten. Voting discrimination still exists, you said; no one doubts that. The argument was about evidence, about whether the record before Congress was current enough to carry the burden. You asked for present facts. It was a demanding standard, and you meant it to be.

4 So here is where the deference I owed you runs out. The standard that governed minority-vote cases for forty years came from *Thornburg v. Gingles*, decided in 1986. *Callais* narrows it, and now asks plaintiffs to prove a state drew its lines with intent, because of race, in the present day. You once told Congress its forty-year-old facts were too old to bind anyone; now you have unsettled a forty-year-old rule that protected voters, and asked the people it protected to carry a burden almost nobody can lift. Justice Kagan, in dissent, dropped the word respectfully from her last line and wrote only that she dissents. Florida redrew its map within hours. Tennessee did it inside a week.

5 I am not asking you to apologize, and I would not presume to tell you the law. I am asking only that you hold the next voting case to the standard you set yourself: current conditions, present facts, the burden where you once placed it. You wrote the rule about forty years. Apply it to your own.

AP-style multiple choice:

1. Which of the following best characterizes the writer's purpose in restating Roberts' Shelby County language in the third paragraph?
 - A) To praise Roberts for the rigor of the evidentiary standard he set in 2013
 - B) To summarize the legal reasoning of Shelby County so a general reader can follow the case
 - C) To prove that Roberts privately doubts that voting discrimination still exists today
 - D) To hold Roberts to a standard of evidence he himself once demanded, exposing a contradiction with his vote in Callais
2. In the fourth paragraph, the sentence beginning 'You once told Congress its forty-year-old facts were too old to bind anyone' relies primarily on which rhetorical strategy?
 - A) Antithesis, balancing his rejection of old facts against his unsettling of an old rule
 - B) A rhetorical question, posed to the addressee to prompt reflection rather than an answer
 - C) Hyperbole, exaggerating the consequences of the ruling beyond what the facts support
 - D) Allusion, invoking a historical figure the average reader would recognize

Discussion questions:

1. The letter never calls Roberts wrong and never demands an apology; it asks only that he apply his own standard. How does that restraint change the force of the argument compared with a direct accusation?
2. The writer concedes early that a citizen cannot read a docket the way a Justice can, then declines to defer anyway. Is that concession genuine, or is it a setup for the turn? Use specific lines to defend your reading.

Writing prompt (Homework or extended in-class, Q3 argument):

In this open letter, the writer argues that a judge who once demanded current evidence to justify a voting-rights law should be held to that same demand when he later narrows such protections. The piece rests on a broader principle: that people in power should be bound by the standards they have publicly set for others. Write an essay in which you defend, challenge, or qualify the claim that public figures should be held to the standards they themselves have articulated. Use appropriate evidence from your reading, observation, or experience to develop your position.